

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Scott Carlton	Team: Squad #16	CCRB Case #: 201801465	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Wednesday, 01/31/2018 12:00 AM, Tuesday, 02/06/2018 12:00 AM, Tuesday, 02/13/2018 12:00 AM, Wednesday, 02/14/2018 12:00 AM, Tuesday, 02/27/2018	Location of Incident: § 87(2)(b)	18 Mo. SOL 8/27/2019	Precinct: 68		
Date/Time CV Reported Wed, 02/28/2018 2:49 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 02/28/2018 2:49 PM		
Complainant/Victim	Type	Home Address			
Subject Officer(s)	Shield	TaxID	Command		
1. An officer			068 PCT		
2. POM Jesus Vargas	20972	963308	068 PCT		
3. POM Brendan Finnigan	22644	963031	068 PCT		
Witness Officer(s)	Shield No	Tax No	Cmd Name		
1. POM Hanzala Munir	25723	964181	068 PCT		
Officer(s)	Allegation	Investigator Recommendation			
A . POM Brendan Finnigan	Abuse: Police Officer Brendan Finnigan refused to provide his name and shield number to § 87(2)(b)	A . Unsubstantiated			
B . POM Jesus Vargas	Abuse: Police Officer Jesus Vargas refused to provide his name and shield number to § 87(2)(b)	B . Unsubstantiated			
C . An officer	Abuse: An officer threatened to damage § 87(2)(b)s property.	C . Officer(s) Unidentified			
D . An officer	Abuse: An officer threatened to remove § 87(2)(b) to the hospital	D . Officer(s) Unidentified			
§ 87(4-b) § 87(2)(g)					

Case Summary

On February 28, 2018, § 87(2)(b) reported the following complaint to the CCRB in person (Board Review 01).

On February 27, 2018, at 11:02 p.m., Police Officer Jesus Vargas and Police Officer Brendan Finnigan responded to a 911 call made by § 87(2)(b) at § 87(2)(b), in Brooklyn regarding a noise disturbance created by his neighbors. § 87(2)(b) had called 911 about noise complaints multiple times per day. Upon their arrival outside his apartment, § 87(2)(b) refused to open his door. Through the door, § 87(2)(b) requested the officers' names and shield numbers, which they did not provide (**Allegation A: Abuse of Authority, unsubstantiated; Allegation B: Abuse of Authority, unsubstantiated**). One of the officers, whom § 87(2)(b) was unable to identify, told § 87(2)(b) through the door that he would forcibly knock down the door and take § 87(2)(b) to the hospital if he did not open it (**Allegation C: Abuse of Authority, officer unidentified; Allegation D: Abuse of Authority, officer unidentified**). The officers departed the scene after approximately one minute outside § 87(2)(b)'s door.

§ 87(4-b) § 87(2)(g)

No video evidence or audio recordings were available in regard to this incident.

Findings and Recommendations

Allegation (A) Abuse of Authority: Police Officer Brendan Finnigan refused to provide his name and shield number to § 87(2)(b)
Allegation (B) Abuse of Authority: Police Officer Jesus Vargas refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(g)

In his verified statement, § 87(2)(b) stated that he requested the officers shield numbers through his apartment door, which they did not provide (Board Review 01). He also said, "Can I get your badge ID? What is your name, officer?" but heard nothing in response. § 87(2)(b) believed the officers were able to hear him through the door. § 87(2)(b) made these requests no more than two times.

In his statement at the CCRB, Police Officer Vargas stated that he did not remember any occasion in which he had responded to § 87(2)(b) but § 87(2)(b) had not opened the door (Board Review 02). However, Police Officer Vargas had responded to the location multiple times and referred to § 87(2)(b) as a "chronic caller." Police Officer Vargas had never refused to provide § 87(2)(b) with his name and shield number, and had never heard another officer do so.

Police Officer Finnigan stated to the CCRB that he did not hear § 87(2)(b) request the name and shield of himself or Police Officer Vargas through the door (Board Review 03). As far as Police Officer Finnigan was aware, § 87(2)(b) did not request this information.

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that **Allegations A and B** be closed as **unsubstantiated**.

Allegation (C) Abuse of Authority: An officer threatened to damaged § 87(2)(b)'s property.

Allegation (D) Abuse of Authority: An officer threatened to remove § 87(2)(b) to the hospital.

§ 87(2)(b) alleged that when he refused to open his apartment door to the police officers, one of the officers said to § 87(2)(b) that he would forcibly knock down § 87(2)(b)'s apartment door if he did not open it and remove § 87(2)(b) to the hospital (Board Review 01). § 87(2)(b) did not remember the appearance of the officer who said this except that he was male and in uniform. Since § 87(2)(b) never opened the door during the interaction he was unable to see the officer except through the peephole of the door.

Police Officer Vargas and Police Officer Finnigan, who were both male and dressed in uniform at the time of incident, denied that either of them made mention of the hospital or of forcible entrance into § 87(2)(b)'s apartment (Board Review 02 and 03). As far as they could recall, neither Police Officer Vargas nor Police Officer Finnigan threatened to damage § 87(2)(b)'s door or take him to the hospital.

§ 87(2)(g)

§ 87(2)(g)

It is therefore recommended that **Allegation C and D** be closed as **officer unidentified**.

§ 87(4-b), § 87(2)(g)

§ 87(4-b), § 87(2)(g)

Civilian and Officer CCRB Histories

- § 87(2)(b) has been party to seven CCRB complaints. In all cases, he has been named as a victim (Board Review 05).
 - § 87(2)(b)
- Police Officer Vargas has been a member of service for one year. This is the first allegation against him.
- Police Officer Finnigan has been a member of service for one year. This is the first allegation against him.

Mediation, Civil and Criminal Histories

- This case was ineligible for mediation § 87(2)(g).
- As of May 4, 2018, § 87(2)(b) had not filed a Notice of Claim in regard to this incident (Board Review 06).
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]

Squad No.: 16

Investigator: _____

Signature

Print Title & Name

Date

Squad Leader: _____
Signature Print Title & Name Date

Reviewer: _____
Signature Print Title & Name Date